

SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER OCCURRED ON
THE ACTUAL DOCKET — ALL FACTS AND IDENTIFIERS ARE FICTIONAL

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

Leora Benton v. Blue Cedar Compliance, Inc.

No. SYN-CA4-26-CV-4101-CF-NEVER-OCCURRED

Counterfactual Order Submitting Appeal on Briefs

Submission without oral argument

Entered April 20, 2026.

The court has reviewed the completed principal briefs, the joint appendix, and the parties' statements concerning oral argument. The assigned panel unanimously concludes that oral argument is unnecessary because the facts and legal contentions are adequately presented in the filed materials and argument would not aid the decisional process. The appeal is therefore submitted on the briefs under Federal Rule of Appellate Procedure 34 and the court's governing procedures.

The clerk shall mark briefing complete and transmit the briefs and record to the panel. No party is required to appear for the previously reserved argument setting. The submission date is April 20, 2026. This order addresses only the manner of submission. It does not resolve either the challenge to the narrow exclusion of Tessa Wynn's late declaration or the challenge to summary judgment on Leora Benton's Title VII retaliation claim.

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Scope and notice

The panel will decide the appeal from the admitted district-court record, the joint appendix, and the authorities presented in the briefs. The parties remain responsible for promptly notifying the clerk of any material supplemental authority through the procedure allowed by the appellate rules. Such a notice may identify new authority and its relevance but may not be used to submit a new brief or enlarge the record.

The clerk shall remove the argument setting from the calendar and serve this order electronically on counsel for Benton and Blue Cedar. Any later opinion and judgment will be entered separately. The absence of oral argument creates no inference about the disposition, the governing standards of review, or the weight assigned to any record item. The case is submitted to the panel as of the date of this order, and no additional merits filing is authorized unless the court requests one.